

49

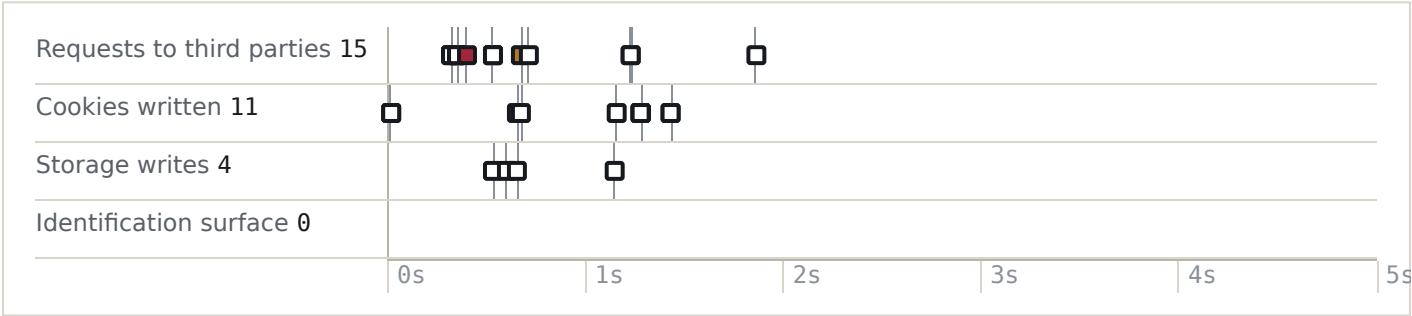
Characterised failures — provisional

7 departure(s) · 3 to review · 3 consistent · 8 did not apply

- Measured in the visitor's own profile. What was deposited is recorded, but that it was deposited before consent is not established — the site may be acting on a choice made earlier.
- TCF (vendor unidentified) was identified, but its banner was located by appearance rather than by its own markup.
- The privacy policy was not analysed, so category D did not apply.
- Scored over 70% of the rulebook — the rest did not apply to this page. A score computed over part of the rules is not comparable with one computed over all of them.

Deposit timeline

What the site sent, wrote and read during the observation window, before anything was clicked. Time runs from the moment the page began to load.



Findings

Each finding carries the observation that produced it, the text it rests on, and what would resolve it. Findings are statements about what was measured, not legal conclusions.

BEFORE THE VISITOR COULD ANSWER

! Trackers contacted before consent

To review · PRE_CONSENT_TRACKERS

- rubiconproject.com (advertising, Magnite)
1 request(s), first at 385 ms
- amplitude.com (analytics, Amplitude)
1 request(s), first at 667 ms
- 3 further third-party domain(s) were contacted but are not in the shipped table
lemde.fr, ebxcdn.com, sirius.press

Measured in the visitor’s own profile, where the site may be acting on a choice made earlier. What was deposited is recorded; that it was deposited **before consent** is not established. Re-run in a clean window to settle it.

ePrivacy art. 5(3) · GDPR art. 6(1)(a) · LIL art. 82 · CNIL délib. 2020-091	Hold every advertising, analytics and social tag until consent is recorded. Loading the tag manager itself is not enough of a delay: the tags it fires must be gated on the consent signal, not on the manager being ready.
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! Cookies written before consent

To review · PRE_CONSENT_COOKIES

- `_pctx` on `lemonde.fr`
Piano/Cxense or Urchin identifier; persistent, at 1271 ms
at 1.3 s
- `lmd_a_c` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 2 ms
- `lmd_rand_id` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 2 ms
- `atauthority` on `lemonde.fr`
raised for review — AT Internet audience measurement
at 644 ms
- `pa_privacy` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 663 ms
- `lmd_consent_tmp` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 1.1 s
- `atid` on `www.lemonde.fr`
raised for review — AT Internet audience measurement
at 1.3 s
- `atidx` on `www.lemonde.fr`
raised for review — AT Internet audience measurement
at 1.3 s
- `lmd_pa` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 1.3 s
- `lead` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 1.4 s
- `lead_ads` on `lemonde.fr`
raised for review — purpose not determinable from outside the site
at 1.4 s

Measured in the visitor's own profile, where the site may be acting on a choice made earlier. What was deposited is recorded; that it was deposited *before consent* is not established. Re-run in a clean window to settle it.

ePrivacy art. 5(3) · LIL art. 82 · CNIL délib. 2020-091

Write nothing but strictly necessary cookies until a choice is recorded. Where audience measurement is claimed as exempt, keep the evidence that it meets the CNIL's conditions — own-site only, no cross-site profile, no onward sharing.

! Terminal storage written before consent

To review · PRE_CONSENT_STORAGE

- localStorage key "lmd.batch.first.url"
8 bytes at 522 ms
- sessionStorage key "auto-refresh"
5 bytes at 590 ms
- localStorage key "__storage_test__"
16 bytes at 643 ms
- sessionStorage key "ebx_webtag_"
32 bytes at 1133 ms
at 1.1 s

Measured in the visitor's own profile, where the site may be acting on a choice made earlier. What was deposited is recorded; that it was deposited *before consent* is not established. Re-run in a clean window to settle it.

ePrivacy art. 5(3) · LIL art. 82 · CNIL délib. 2020-091 Treat localStorage, sessionStorage and IndexedDB exactly as cookies: nothing written until a choice is recorded, beyond what the service the visitor asked for strictly requires.

✓ Fingerprinting surface reached before consent

Consistent · PRE_CONSENT_FINGERPRINT

✓ Cookies set aside as not requiring consent

Consistent · EXEMPTION_CHECK

- atauthority on lemonde.fr
AT Internet audience measurement — audience measurement — exempt only under conditions this tool cannot verify (conditions not verifiable from outside; check them)
at 644 ms
- atid on www.lemonde.fr
AT Internet audience measurement — audience measurement — exempt only under conditions this tool cannot verify (conditions not verifiable from outside; check them)
at 1.3 s
- atidx on www.lemonde.fr
AT Internet audience measurement — audience measurement — exempt only under conditions this tool cannot verify (conditions not verifiable from outside; check them)
at 1.3 s

HOW THE CHOICE WAS OFFERED

✗ Refusal offered on the same layer as acceptance

Departure · REFUSE_SAME_LAYER

- Acceptance is offered on the first screen
"accepter et continuer"
- No refusal is offered on the first screen

GDPR art. 4(11), art. 7(3) · CNIL délib. 2020-091, art. 2 · EDPB Guidelines 05/2020, §§ 47-50

Put a refusal control on the first screen, beside the acceptance and reachable in the same single click.
"Settings" is not a refusal: it is a route to one.

✗ Choice available purpose by purpose

Departure · GRANULARITY

- No per-purpose route was found
neither a preferences control nor per-purpose switches

GDPR art. 6(1)(a), art. 7, recital 43 · EDPB Guidelines 05/2020, §§ 44-46 · CNIL délib. 2020-091, art. 2

Offer a per-purpose choice, reachable from the first screen, with each purpose named in terms a visitor can act on rather than by a framework category number.

✗ A permanent way back to the choice

Departure · WITHDRAWAL_ACCESSIBLE

- Nothing on the page after acceptance offers a way back to the choice

GDPR art. 7(3) · CNIL délib. 2020-091, art. 3 Keep a visible, permanent control — a footer link or a floating badge — that reopens the consent choice from any page, and make using it no harder than giving consent was.

✗ No deceptive design across the banner as a whole

Departure · NO_DARK_PATTERN

- 2 departures point the same way
refusing takes an extra step; there is no per-purpose choice

EDPB Guidelines 03/2022 on deceptive design patterns · GDPR art. 4(11), art. 5(1)(a) · CNIL recomm. 2020-092

Treat the two answers identically: same layer, same surface, same contrast, same cost, nothing pre-selected.
Where several of those differ at once, the imbalance is the design, not an accident of it.

► 3 rule(s) did not apply to this page

WHAT THE BANNER SAID

✗ Controller and recipients identifiable

Departure · CONTROLLERS_IDENTIFIED

- Neither the controller nor the recipients are identifiable from the banner

GDPR art. 13(1)(a), art. 13(1)(e) · CNIL délib. 2020-091, art. 2 · EDPB Guidelines 05/2020, § 65

Name the controller on the first screen and make the full list of recipients reachable from it in one click. Where the list runs to hundreds, the number itself is worth reconsidering before the wording is.

✗ Retention period stated

Departure · RETENTION_STATED

- No retention period appears on the first screen

GDPR art. 13(2)(a) · CNIL délib. 2020-091, art. 2 – 6 months for the consent record, 13 months for trackers

State how long the trackers last and how long the choice is remembered. The CNIL's reference figures — trackers no more than 13 months, the record of the choice about 6 — are what a reader will compare against.

✗ Privacy policy reachable from the banner

Departure · POLICY_REACHABLE

- No link to the policy appears on the banner

GDPR art. 12(1), art. 13 · CNIL délib. 2020-091, art. 2 Put a link to the privacy or cookie policy on the first screen of the banner, labelled as such.

✓ Purposes stated before the choice

Consistent · PURPOSES_STATED

- Purposes named on the first screen
personnalis, contenu

WHAT THE PRIVACY POLICY STATES

► 5 rule(s) did not apply to this page

Consent Audit records observable facts about a site and compares them with published guidance. It is an aid to analysis and not a legal assessment.

Report 20260822125513-afv4b0. 15 third-party request(s) of 49 observed.